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Case Number: 25STCV14589 Hearing Date: July 9, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

STEPHEN M. UTHOFF and ANTOINETTE UTHOFF

Plaintiffs,

v.

ARKEMA, INC., et al.,

Defendants.

Case No. 25STCV14589

Hearing Date: July 9, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

EXXONMOBIL CORPORATION'S MOTION TO COMPEL
COMPLIANCE WITH INDEPENDENT MEDICAL EXAMINATION

I.

Background

On May 15, 2025, Plaintiffs Stephen and Antoinette Uthoff filed their complaint for personal injury alleging Mr. Uthoff developed mesothelioma from indirect occupational exposure to asbestos and asbestos containing products from his father's work as a mechanic from 1965 to 1968, direct non-occupational exposure from his work with automotive products from 1970 to 1983, direct occupational exposure from his won work as a mechanic in 1981 and 1982, and direct non-occupational exposure to asbestos containing home repair products from 1972 to 1983 and from his personal use of talc products between 1991 and 2020. As against Defendant Exxonmobil Oil Corporation ("Exxon" or "Defendant") Plaintiffs allege Mr. Uthoff was exposed to asbestos during his work at a Mike and Joe's gas station for which Defendant was responsible.

On May

18, 2026, ExxonMobil Oil Corporation moved to compel compliance with independent medical examination, arguing genetic testing is necessary to evaluate whether there is an alternative causation argument based on germline genetic mutations. On the same date, Defendant Kaiser Gypsum Company, Inc. joined the motion.

On May

28, 2026, Plaintiffs opposed, arguing that the proposed testing invades Plaintiffs' constitutionally protected privacy rights and that Exxon failed to provide evidence that a genetic mutation can cause mesothelioma absent exposure to asbestos.

On June

24, 2026, the parties stipulated to dismiss ExxonMobil Oil Corporation and deem all motions filed by ExxonMobil Oil Corporation to have been filed by Exxon Mobil Corporation ("Exxon").

On July 1, 2026, Exxon replied, arguing that its interests in taking the genetic testing outweigh Plaintiffs' privacy concerns because results of the genetic testing are directly relevant to the issue of causation.

Exxon fails to show that the proposed genetic testing is essential to its defenses and that it has a compelling interest in discovering Mr. Uthoff's genetic information. Exxon's evidence is insufficient to establish that Mr. Uthoff's prior test results justify genetic testing for a BAP1 mutation. The evidence is also insufficient to establish that genetic testing pertaining to any other genetic mutation is justified in this case. The motion to compel genetic and genomic testing is denied.

II.

Discussion

A.

Legal Standard

"Any party may obtain discovery, subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by means of a physical or mental examination of (1) a party to the action, (2) an agent of any party, or (3) a natural person in the custody or under the legal control of a party, in any action in which the mental or physical condition (including the blood group) of that party or other person is in controversy in the action." (Code Civ. Proc., § 2032.020, subd. (a).)

"(a) In any case in which a plaintiff is seeking recovery for personal injuries, any defendant may demand one physical examination of the plaintiff, if both of the following conditions are satisfied: (1) The examination does not include any diagnostic test or procedure that is painful, protracted, or intrusive. (2) The examination is conducted at a location within 75 miles of the residence of the examinee." (Code Civ. Proc., § 2032.220, subd. (a).) If a plaintiff thereafter fails to serve a timely response to it, the defendant may move for an order compelling a response and compliance with the demand for a physical examination. (Code Civ. Proc., §

2032.240, subd. (a), (b).) If a defendant deems that any modification to a demand for physical examination or any refusal to the demand is unwarranted, the defendant may move for an order compelling compliance with the demand. (Code Civ. Proc., § 2032.250.)

“If any party desires to obtain discovery by a physical examination other than that described in Article 2 (commencing with Section 2032.210), or by a mental examination, the party shall obtain leave of court.” (Code Civ. Proc., § 2032.310, subd. (a).) A motion for an examination under subdivision (a) shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination. The motion shall be accompanied by a meet and confer declaration under Section 2016.040. (Id., § 2032.220, subd. (b).)

A “plaintiff is not compelled, as a condition to entering the courtroom, to discard entirely her mantle of privacy. At the same time, [a] plaintiff cannot be allowed to make her very serious allegations without affording defendants an opportunity to put their truth to the test.” (Vinson v. Superior Court (1987) 43 Cal.3d 833, 842.) An “implicit waiver of a party’s constitutional rights encompasses only discovery directly relevant to the plaintiff’s claim and essential to the fair resolution of the lawsuit.” (Vinson, supra, 43 Cal.3d at p. 842, citing Britt v. Superior Court (1978) 20 Cal.3d 844, 859.)

When evaluating invasions of the right to privacy in discovery, the party asserting a privacy right must establish “(1) a legally protected privacy interest; (2) a reasonable expectation of privacy in the circumstances; and (3) conduct by defendant constituting a serious invasion of privacy.” (Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 48.) A responding party may prevail by negating any of these three elements “or by pleading and proving, as an affirmative defense, that the invasion of privacy is justified because it substantively furthers one or more countervailing interests.” (Id.) “[T]he party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 533.) A court then balances these competing considerations. (Id.) “Only obvious invasions of interest fundamental to personal autonomy must be supported by a compelling interest.” (Id. at p.557.) When lesser interests are at stake, “the strength of the countervailing interest sufficient

to warrant disclosure of private information var[ies] according to the strength of the privacy interest itself, the seriousness of the invasion, and the availability of alternatives and protective measures.” (Id. at p.556.)

B.

Analysis

Exxon

moves to compel Mr. Uthoff to undergo genetic testing consisting of whole gene sequencing and a 1,217 gene panel from the Memorial Sloan Kettering Cancer Center’s (MSKCC) OncoKB cancer-gene list, plus 10 different mesothelioma-associated genes. (Motion at p.6.) Exxon argues that Mr. Uthoff’s maternal family history strongly indicates hereditary cancer syndrome. (Id. at p.7.) Exxon argues that the proposed blood draw is not painful, that the proposed testing is not unreasonably intrusive, that its interest in discovering the information outweighs Plaintiffs’ privacy interest, and that Plaintiffs’ privacy concerns are adequately addressed by the proposed genetic protocol. (Id at p.15.) Alternatively, Exxon requests reporting of 81 tumor suppressor genes. (Id. at p.18.)

Plaintiffs argue

that the genetic testing is a significant invasion of their right to privacy. As a threshold issue, the court must first determine whether Plaintiffs established (1) a legally protected privacy interest; (2) a reasonable expectation of privacy in the circumstances; and (3) conduct by defendant constituting a serious invasion of privacy. (Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 48.) The California Constitution protects an individual’s reasonable expectation of privacy against serious invasion. (Cal. Const., art. I, § 1.) California courts have ruled that a person has a strong privacy interest in his DNA profile and genetic information. (County of San Diego v. Mason (2012) 209 Cal.App.4th 376, 381.) A privacy interest may be “abridged for a compelling opposing interest where laws are in place to limit use of the DNA to a specific purpose to satisfy that interest.” (Ibid.) In other words, the standard is high for a court to order discovery of the genetic information contained in DNA. Such an order must be supported by a compelling interest and limited to a specific purpose to satisfy that interest. Individuals have a strong, legally protected privacy interest in their DNA and genetic information. Persons also have a reasonable expectation of privacy of such sensitive information. The proposed genetic testing here is a serious invasion of this privacy interest because Exxon seeks significant genetic

testing of both Mr. Uthoff's blood and tissue. Because Exxon proposed genetic testing is a serious invasion of Plaintiff's legally protected privacy interests, it must be supported by a compelling interest.

The court turns to whether the proposed genetic testing is essential to Moving Defendant's defenses. (Vinson, *supra*, 43 Cal.3d at p. 842, citing *Britt v. Superior Court* (1978) 20 Cal.3d 844, 859.) The strength of Moving Defendants' interest in discovering the requested genetic information will depend on the strength of Plaintiffs' privacy interest, the seriousness of the invasion, and the availability of alternatives and protective measures. (Williams, *supra*, 3 Cal.5th at p.556.)

As discussed, Plaintiffs have a strong privacy interest in their genetic information requiring a compelling interest to justify discovery. Additionally, the intrusion into Plaintiffs' privacy is significant because the proposed genetic testing encompasses 1,227 genes. Even if the proposed gene panel comprises 1.6% of Mr. Uthoff's genome as Exxon alleges, the number of genes to be tested is significant and could reveal sensitive information about Mr. Uthoff's health. (Motion at p.16.)

Exxon also argues that the blood draw involved in the proposed testing is neither painful nor protracted. (*Id.* at p.12.) Even if the procedure to perform the testing is minimally invasive, the genetic testing would reveal information about Mr. Uthoff's health and possibly the health of his family members. As Plaintiffs point out in the opposition, discovery of the genetic information could affect their ability to obtain health or life insurance, cause them to suffer discrimination, and cause them to face employment hurdles. (Opp. at p.5.) Accordingly, Exxon must show a compelling countervailing interest sufficient to warrant disclosure. The court notes that Exxon submitted a proposed confidentiality order which calls for destruction of the test results and prohibits the use of the test results outside of litigation. However, even if Exxon proposed a confidentiality order, genetic testing would still significantly infringe on Plaintiffs' privacy if Exxon is permitted to discover information about Plaintiffs' genetic information that is not essential to its defenses.

Exxon also argues that Mr. Uthoff has no expectation of privacy because he placed his genetic condition at issue and authorized his insurer to receive genetic information and test results. However, Mr. Uthoff's genetic condition would not be at issue

in this case but for Exxon's defense that Mr. Uthoff's mesothelioma was caused by a genetic mutation. Exxon fails to explain how Mr. Uthoff authorizing his own medical insurance provider to receive his genetic testing for purposes of obtaining insurance results is a wholesale waiver of Mr. Uthoff's privacy rights in this litigation. Exxon's arguments that Mr. Uthoff waived his right to privacy are without merit.

Exxon's expert in pulmonary, internal, and critical care medicine, Dr. Stasha Novakovic, opines that Mr. Uthoff's family history of cancer, his own history of cancer, his early mesothelioma diagnosis, the peritoneal location of his mesothelioma, and his epithelioid histology are all factors which indicate that Mr. Uthoff may have a gene mutation that can cause cancer such as mesothelioma. (Exxon's Index of Evidence, Exh. A at ¶¶7, 10-15.)

A second expert, Dr. Leonel van Zyl, declares that Mr. Uthoff's pathological findings confirm that genetic testing is appropriate because a testing panel run on Mr. Uthoff's tumors found a total loss of the BAP1 nuclear protein. (Id., Exh. B at ¶8.) Dr. van Zyl declares that the loss of this protein is a strong predictor for a BAP1 mutation because it shows BAP1 has been inactivated. (Id. at ¶8.) The fact that Mr. Uthoff suffers from cancer in two places is further evidence, says Van Zyl, of a BAP1 mutation. (Id. at ¶¶8-9.) He further argues that the fact that Mr. Uthoff's maternal line is from Italy is another indicator that Mr. Uthoff is a BAP1 gene mutation carrier because the region where Mr. Uthoff's maternal line is from is a geographic hotspot for hereditary mesothelioma predispositions. (Id., ¶¶17-18.) In addition to BAP1, Dr. van Zyl declares that there are 781 other "mesothelioma specific driver genes" that could predispose individuals to develop mesothelioma. (Id. at ¶7.)

In opposition, Plaintiffs argue that there is no scientific basis for the conclusion that genetic mutation causes mesothelioma absent exposure to asbestos. (Opp. at pp.17-18.) Plaintiffs also cite deposition testimony and trial testimony from other matters that there is no evidence to support Exxon's contention that BAP1 can cause mesothelioma without asbestos exposure. (Seitz Decl., Exhs. 1, 5, 7-11.) Plaintiffs, however, offer no expert declaration in response.

Plaintiffs also argue that Mr. Uthoff's Italian heritage is not a factor indicating the

presence of a gene mutation because the prevalence of mesothelioma in southern Italy is due to environmental contamination of fluoroedenite. (Opp. at p.14.) Plaintiffs cite to a scholarly article on the incidence of mesothelioma in young people to support this argument. (Seitz Decl., Exh. 13.) The article concludes that clusters of mesothelioma cases in young people are “a significant signal of potential non-occupational exposure to asbestos.” (Id. at p.603.) The article does not show that the prevalence of mesothelioma in southern Italy is due to environmental contamination as Plaintiffs allege.

Discussion

Exxon’s argument rests largely on the clinical appropriateness of a physician recommending genetic testing to a patient like Mr. Uthoff, and the patient voluntarily following such advice.

That, however, is not the issue here.

The motion asks the court to require, based on the record presented, extensive genetic testing over a patient’s objections. The issue is whether the factors identified by Exxon establish a genetic cause of mesothelioma that excludes cause by asbestos exposure. Van Zyl’s opinion is prolix, and not as definitive as Exxon argues, but approaches it: “Mr. Uthoff’s clinical presentation: epithelial peritoneal mesothelioma plus thyroid carcinoma in the same individual – is biologically inexplicable by asbestos exposure alone and is entirely consistent with germline-driven multi-organ hereditary cancer predisposition.” (Van Zyl decl. ¶ 9 (italics omitted).)

Even the expert’s hedging – “entirely consistent” – is not supported by the studies and evidence relied upon.

Exxon fails to

show it has a compelling interest in discovering whether Mr. Uthoff has a BAP1 mutation which can cause mesothelioma without exposure to asbestos. Exxon’s experts opine that Mr. Uthoff’s family history of cancer, his own history of cancer, the lack of BAP1 proteins in his tumors, and other factors indicate that he is likely a BAP1 carrier. Specifically, Dr. van Zyl opines that “Mr. Uthoff’s pathological findings further illustrate the scientific appropriateness of testing for genetic causation: A peritoneal biopsy in February 2025 confirmed malignant mesothelioma, epithelioid type, with the following IHC panel: complete BAP1 nuclear protein loss (calretinin+; WT-1+; claudin-4-; TTF-1-). IHC demonstration of BAP1 nuclear protein loss is a signature molecular finding of biallelic BAP1 inactivation and is a strong predictor of an underlying

germline BAP1 mutation (Carbone et al., 2020). It serves as a crucial, cost-effective screening tool for 'BAP1 Tumor Predisposition Syndrome' (BAP1-TPDS) in various tumors, including mesothelioma, uveal melanoma, and cutaneous melanocytic tumors (Carbone et al., 2020)." (Exxon's Index of Evidence, Exh. B at ¶8.) This misstates the matter before the court. The issue is not whether it might be clinically or scientifically appropriate – as a matter of diagnostic and treatment options – to conduct the testing Exxon would like performed.

The court has reviewed the Carbone article ("Carbone 2020") cited by Exxon. The article does not support Dr. van Zyl's opinion that IHC demonstration of BAP1 nuclear protein loss is a strong predictor of underlying germline BAP1 mutation. To the contrary, the article states that "BAP1 nuclear staining is found in the normal cells of carriers of germline BAP1 mutations because the remaining wild-type allele produces a normal BAP1 protein. Therefore, IHC, which is not a quantitative assay, cannot help to identify carriers of germline BAP1 mutations." (Carbone, et al., Biological Mechanisms and Clinical Significance of BAP1 Mutations in Human Cancer (August 2020).

As for Dr. van Zyl's assertion that IHC demonstration of BAP1 nuclear protein loss is a signature molecular finding of biallelic BAP1 inactivation, the Carbone 2020 article states "negative BAP1 nuclear staining by IHC, regardless of cytoplasmic staining, is found in about 60% to 70% of mesotheliomas and is a reliable, rapid, and economical approach to identify biallelic BAP1 inactivating mutations. Instead, BAP1 nuclear staining is evidence of wild-type BAP1." (Carbone 2020 at p. 1109.) The language Dr. van Zyl relies on to form his opinion that Mr. Uthoff's negative BAP1 nuclear staining is an indicator of a BAP1 mutation states that a negative BAP1 IHC result is an effective approach to detect BAP1 mutations. However, as Plaintiffs point out in the opposition, negative IHC BAP1 results are common in patients diagnosed with mesothelioma, with 57% of patients in one study of 75 patients with a definitive diagnosis of mesothelioma receiving negative BAP1 nuclear staining results. (Seitz Decl., Exh. 4 at p.1362.) The Carbone 2020 article states at most that IHC staining is an approach to detecting a BAP1 mutation and provides no explanation for the assertion that negative BAP1 IHC results can reliably identify biallelic BAP1 inactivation mutations. For example, there is no data on what number of patients with negative BAP1 nuclear staining actually have a BAP1 mutation. If the number of patients with a BAP1 mutation within the number of patients with

negative BAP1 nuclear staining was high, then the IHC results would be a strong indicator that Mr. Uthoff has a BAP1 mutation and support a finding that Exxon has a compelling interest in discovering Mr. Uthoff's genetic information. It appears to the court that Dr. van Zyl's opinion that the negative BAP1 nuclear staining results is a strong indicator of a BAP1 mutation is unsupported by the Carbone article.

Dr. van Zyl's

other justifications for the requested genetic testing related to BAP1 likewise fail to support a finding that Exxon has a compelling interest in discovering Mr. Uthoff's genetic information. Dr. van Zyl opines that factors such as Mr. Uthoff's family history of cancer, Italian lineage, and history of cancer, support a likelihood that Mr. Uthoff is a BAP1 mutation carrier. However, the evidence cited by Dr. van Zyl states that BAP1 mutations carriers are likely to have these traits, not that people with these traits are likely to be BAP1 mutation carriers. The evidence is reverse correlative: No study is offered to show that these traits or a combination of them indicate that Mr. Uthoff is a BAP1 mutation carrier. There is also no evidence that the cancer types present in Mr. Uthoff's family medical history are related to BAP1. Without evidence that Mr. Uthoff is likely to have a BAP1 mutation, Exxon fails to meet the high burden of justifying a significant intrusion into Mr. Uthoff's privacy.

In a similar vein,

Exxon's arguments regarding patients with multiple cancers are unpersuasive. It contends that mesothelioma patients with germline genetic mutations have a higher rate of developing secondary cancers. (Motion, p. 8.) But this does not tend to prove that patients with two forms of cancer are more likely to carry a germline mutation.

Exxon's experts repeatedly

declare that the National Comprehensive Cancer Network ("NCCN") and American College of Medical Genetics and Genomics ("ACMG") guidelines for peritoneal mesothelioma recommend genetic testing for all patients with mesothelioma. Dr. van Zyl opines that failure to use genetic investigation does not adhere to the prescribed standard of care according to these guidelines. (Exxon's Index of Exhibits, Exh. 2 at ¶12.) However, the NCCN and ACMG guidelines recommend genetic testing to allow "cancer prevention and early detection in high-risk relatives" or to discover "disease features that portend to extended survival" for patients already diagnosed with mesothelioma. (Seitz Decl., Exh. 6.) Standards for genetic testing recommended by other physicians to improve health outcomes

for patients are different from the standard the court must consider to determine whether Exxon has a compelling interest in Mr. Uthoff's genetic information. Unlike the standards followed by these healthcare agencies, the court here must balance Mr. Uthoff's privacy interest against Exxon's interest in discovering the information to determine whether the proposed testing is justified.

Exxon also fails

to show that it has a compelling interest in discovering other genetic information, such as whether Mr. Uthoff is a carrier for any other genetic mutations. Exxon's expert opinions and literature pertaining to other mutations at most state that these mutations lead to an increased risk of developing cancers including mesothelioma. However, a tortfeasor takes the injured person as he finds them. (*Rideau v. Los Angeles Transit Lines* (1954) 124 Cal.App.2d 466, 471 ["If, by reason of some preexisting condition, his victim is more susceptible to injury, the tort-feasor is not thereby exonerated from liability."].) In other words, mutations that lead to an increased risk of developing mesothelioma would not absolve Exxon of liability. Unlike BAP1, which Exxon's experts claim causes mesothelioma without asbestos exposure, the remaining mutations make carriers more susceptible to developing cancer but have not been shown to cause Mr. Uthoff's mesothelioma independent of other factors. Because information about these other mutations would not absolve Exxon of liability, its interest in discovering the information is diminished. The information about the other mutations is not essential to Exxon's defenses. Exxon fails to show that it has a compelling interest in discovering Mr. Uthoff's other genetic information over his claim to genetic privacy.

Accordingly,

Exxon's motion to compel compliance with independent medical examination is denied.

III.

Conclusion

Exxon

fails to show that the proposed genetic testing is essential to its defenses and that it has a compelling interest in discovering Mr. Uthoff's genetic information. Exxon's evidence is insufficient to establish that Mr. Uthoff's prior test results justify genetic testing for a BAP1 mutation. The evidence is also insufficient to establish that genetic testing pertaining to any other genetic mutation is justified in this case. Exxon's motion to compel genetic

and genomic testing is denied.